



File No.: EXP202300192

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 1, 2022, a complaint was filed by A.A.A. with NIF ***NIF.1 (hereinafter, the complainant) with entry registration number REGAGE22e00055079621 before the Spanish Agency for Data Protection against CTT EXPRESSO - SERVIÇOS POSTAIS E LOGISTICA SA SUCURSAL EN ESPAÑA with NIF W1000101D (hereinafter, the respondent). The reasons for the complaint are as follows:

- In their writing, the complainant states that they were the recipient of a package, with the respondent being responsible for its delivery. On November 29, 2022, they received a notification about a supposed failed delivery attempt of the mentioned package due to their absence, an assertion that the complainant denies.
- In light of this circumstance, they contacted the respondent, who assured them that the package would be delivered the following day. However, on the same day, they received an email notification from the respondent, claiming that the package had been delivered.
- After this situation, the complainant contacted the respondent again, who admitted that the delivery person had signed for the receipt in the name of the recipient to avoid delays in delivery, given the entity's commitment to deliver within a maximum period of 24 hours and to avoid, in this way, internal problems.
- The actual delivery of the package took place the following day, after the complainant appeared at the respondent's offices, requested a complaint form, and requested the presence of the Local Police.
- The complainant argues that there has been an improper use of their personal data, as it has been processed to confirm a delivery that was not made until the following day.

For evidentiary purposes, a copy of the various communications received regarding the shipment of the package, as well as the complaint form submitted by the complainant, is attached to the complaint submitted.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out electronically in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made available through the Single Authorized Electronic Address (DEHÚ) on January 13, 2023, with access to its content on January 16, 2023, as noted in the acknowledgment of receipt in the file. No response has been received to this transfer.

THIRD: On March 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the details that are subsequently presented. Following the communication of the facts by the complainant, the respondent was requested, on April 17, 2023, to provide the following documentation and information:

a. Submission of the technical reports or recommendations prepared by the Data Protection Officer or the security officer regarding the treatments for which information is requested, as well as the subsequent actions taken or their absence, derived from the aforementioned technical reports or recommendations.

b. The decision made regarding this complaint.

c. Report on the causes that led to the incident that originated the complaint.

d. Report on the measures taken to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

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e.

Any other that it considers relevant.

On April 25, 2023, a response was received from the party being claimed against, highlighting the following:

a.

The report from the data protection delegate from November 2022 is presented, in which it is proposed to review the delivery operation and to monitor its compliance.

b.

It is alleged that, after analyzing the causes that led to the claim, it has been verified that the package of the claiming party was not delivered to a third party, but rather it was returned to the office.

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It acknowledges the existence of malpractice on the part of the carrier, whom they have decided to investigate and sanction for having simulated a delivery that did not actually take place. It recognizes that an email was sent to the claimant confirming the delivery of the package, due to the aforementioned malpractice of the carrier. This malpractice consisted of the carrier not making the second delivery attempt on the same day and proceeding to return the package to the warehouse, appearing in the system as delivered. However, said package was delivered the next day when the claiming party appeared at their facilities.

a.

Regarding the arguments of the claiming party, they deny any unlawful processing, asserting that the claimant's data was maintained at all times within their own scope. Similarly, they argue that there was no transfer of data, given that the package was not delivered to a third party and only authorized personnel had access to that information.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Principles relating to processing

Letter d) of Article 5.1 of the GDPR advocates:

"1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and

transparency’);

- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes (‘purpose limitation’);
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay (‘accuracy’);
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods insofar as they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures required by this Regulation to protect the rights and freedoms of the data subject (‘storage limitation’);
- f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures (‘integrity and confidentiality’).”

III

Lawfulness of processing

Similarly, Article 6 of the GDPR develops the lawfulness of processing:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

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- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

IV

Conclusion

In the case at hand, the incident reported by the respondent, consisting of the carrier simulating the delivery of the package despite not having carried it out, although it constitutes a bad practice and a violation of the company's internal procedures, does not render the processing of personal data unlawful in the terms indicated by the GDPR.

Thus, the processing of personal data (identifying data and address of the recipient) remained within the necessary framework for the execution of the delivery contract. Therefore, the original purpose of the data processing was not altered, regardless of whether the delivery ultimately did not take place

effectively.

Similarly, there is no indication of any additional misuse of the personal data of the respondent. The investigative actions indicate that the data were not used for any other purpose nor were they inappropriately shared with third parties. This implies that, aside from the incident of the non-delivery confirmation, there was no other processing of data distinct from that purpose.

In conclusion, although the simulation of the delivery constitutes a misconduct on the part of the carrier, such actions do not necessarily imply that the processing of personal data by the company was unlawful under the GDPR. The legal basis for the processing of the data (fulfillment of a contract) remained intact, even though the effective delivery did not take place, and on the other hand, the company acted diligently in addressing the incident once it was reported.

Furthermore, it is pertinent to highlight that, throughout the process, the package remained within the postal operator's distribution network, with no loss of the shipment occurring, thereby mitigating any potential risk regarding the personal data of the claimant. This internal management demonstrates that the principle of confidentiality of personal data was not violated, as the integrity of the package and the recipient's information were kept protected at all times.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, all without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to CTT EXPRESSO - SERVIÇOS POSTAIS E LOGISTICA SA BRANCH IN SPAIN and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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